

26STCV00581 26STCV00581

County: los-angeles

Division: Civil Law and Motion

Department: 14

Hearing date: 2026-07-29

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Case Number: 26STCV00581 Hearing Date: July 29, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF  
CALIFORNIA¿¿

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14¿

¿

FIDEL FLORES and DIANA FLORES,

Plaintiffs,¿

v.

3M COMPANY, et al.,

¿

Defendants.¿¿

Case No. 26STCV00581

¿¿¿¿

Hearing Date: July 29, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

SPECIALLY APPEARING DEFENDANT SUZUKI MOTOR  
CORPORATION'S MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT FOR IMPROPER  
SERVICE AND LACK OF PERSONAL JURISDICTION

I.

Background

On January 2, 2026, Plaintiffs Fidel and Diana Flores (collectively, "Plaintiffs") filed their complaint for personal injury alleging Mr. Flores developed pleural disease and lung cancer from occupational exposure to asbestos-containing products. On May 14, 2026, Plaintiffs amended the complaint and named specially appearing Defendant Suzuki Motor Corporation ("SMC") as Doe 9. As to SMC, Plaintiffs allege that Mr. Flores was exposed to asbestos-containing Suzuki motorcycle and car parts while working as a mechanic in California.

On June 30, 2026, SMC filed its motion to quash arguing Plaintiffs purported service is invalid under both California statutory law and the Hague Service Convention. SMC argues it is a Japanese corporation and Plaintiffs' substitute service to CT Corporation in its capacity as the registered agent for both Suzuki Motor U.S.A., LLC ("SMO") and Suzuki Motor of America, Inc. ("SMAI") on May 28, 2026, were improper because neither CT Corporation, SMO, nor SMAI are registered agents for service of process for SMC.[1] SMC contends that SMO is a wholly owned subsidiary of SMAI, and SMAI is a wholly owned subsidiary of SMC. Defendant further argues that SMO is not a general representative or alter-ego of SMC because the two companies only have a non-exclusive and limited sales relationship involving the sale and promotion of some SMC products and SMO does not hold itself out as a general manager or US headquarters for SMC. Thus, because SMO and SMAI are not "general managers" for SMC, service was not proper under California law and the exception to the Hague Service Convention did not apply. SMC argues that Plaintiffs failure to serve SMC through transmitting the Summons and Complaint to Japan's Central Authority pursuant to the Hague Service Convention renders the service invalid.

On July 16, 2026, Plaintiffs opposed, arguing that service was proper

because SMAI and SMO serve as “general managers” for SMC. Relying on case law, Plaintiffs argue that federal law permits service of foreign corporations through their domestic subsidiaries as an alternative to the Hague if allowed by state law. Thus, because SMO and SMAI were properly served as general managers for SMC, service is valid under California law and the Hague Service Convention. In the alternative, Plaintiffs argue they are entitled to jurisdictional discovery to present evidence to support their contention that SMO and SMAI are SMC’s “general managers” under relevant case law.

On July 22, 2026, SMC replied, arguing that Plaintiffs have not met their burden of proof as to jurisdictional facts and the service on SMC through SMO and SMAI are invalid. SMC further argued that the submitted declarations in support are valid because both Mr. Takayama and Mr. Foley speak from personal knowledge and review of relevant corporate documents. As to the jurisdictional discovery request, SMC argues that Plaintiffs failed to justify a continuance because they have not provided support for their request and their request is redundant.

The court finds Plaintiffs have not shown that an exception to the Hague Service Convention applies and that its substituted service on SMO and SMAI was permitted. Plaintiffs have therefore failed to meet their burden of proving the existence of jurisdiction with facts showing effective service. However, the court exercises its discretion to allow Plaintiffs to conduct jurisdictional discovery. The date and briefing schedule will be determined at the hearing. Plaintiffs are ordered to give notice.

II.

Evidentiary Objections

Plaintiffs’ Objections

A. Takayama’s  
Declaration

Overruled:

1. Takayama’s

Declaration in its entirety does not lack personal knowledge and is not hearsay. Mr. Takayama states: “I am the Secretary of SUZUKI MOTOR OF AMERICA, INC (“SMAI”). By virtue of my position at SMAI and based upon my review of relevant records that I know to be true and accurate, I have personal knowledge of the

facts set forth herein, and these facts are true and correct to the best of my knowledge.” (Takayama Decl., ¶

1.) Accordingly, his position as Secretary of SMAI provides him a sufficient basis for personal knowledge regarding SMAI. Mr. Takayama's testimony is a declaration used in lieu of live testimony as is expressly permitted under Code of Civil Procedure sections 2009 and 2015.5 as well as California Rules of Court, rule 3.1306. As such, his testimony is properly before the court. Plaintiffs' objections are overruled.

2-4, 16. Same as no. 1

Sustained:

5. Paragraph

6: “ SMAI is not a wholesale distributor of any Suzuki-brand motorcycles, and thus by extension to its principal business does not act as the exclusive importer and distributor of Suzuki-brand motorcycles or any other Suzuki-brand product.” This paragraph lacks foundation because Mr. Takayama does not establish that he has personal knowledge about SMAI's business structure and dealings as SMAI's Secretary. He provides no documentary evidence to support his statement and does not identify his employment period in his current role.

Against the objection of

a party, such personal knowledge must be shown before the witness may testify concerning the matter. (Evid. Code, § 702, subd. (a).) Corporate representatives are also subject to this personal knowledge rule and are limited to testimony reflecting their personal knowledge. (LAOSD Asbestos Cases (Ramirez v. Avon Products), (2023) 87 Cal.App.5th 939 (“Ramirez”).) For example, in Ramirez, a corporate representative's testimony was inadmissible because the events described took place before the representative began working for the corporation and the representative failed to identify a source for her information. (Id. at p.951.) Even if the representative was “channeling” information from other individuals with personal knowledge, the trial court had no way of evaluating the reliability of the representative's information obtained from these individuals. (Id.) Accordingly, Plaintiffs' objections are sustained.

6-15,

17-22. Same as no. 5.

B. Foley's  
Declaration

Overruled

1.

Foley's

Declaration in its entirety does not lack personal knowledge and is not hearsay. Mr. Foley states: "I am the Engineering Manager of SUZUKI MOTOR U.S.A., INC. ("SMO"). By virtue of my position at SMO and based upon my review of relevant records that I know to be true and accurate, I have personal knowledge of the facts set forth herein, and these facts are true and correct to the best of my knowledge." (Foley Decl., ¶ 1.) Accordingly, his position as Engineering Manager of SMO provides him a sufficient basis for personal knowledge regarding SMO. Mr. Foley's testimony is a declaration used in lieu of live testimony as is expressly permitted under Code of Civil Procedure sections 2009 and 2015.5 as well as California Rules of Court, rule 3.1306. As such, his testimony is properly before the court. Plaintiffs' objections are overruled.

2-3, 11. Same as no. 1

Sustained

5.

Paragraph 5: "SMO is not the exclusive distributor of SMC products." This paragraph lacks foundation because Mr. Foley does not establish that he has personal knowledge about SMO's business structure and dealings as SMO's Engineering Manager. He provides no documentary evidence to support his statement and does not identify his employment period in his current role.

Against the objection of

a party, such personal knowledge must be shown before the witness may testify concerning the matter. (Evid. Code, § 702, subd. (a).) Corporate representatives are also subject to this personal knowledge rule and are limited to testimony reflecting their personal knowledge. (LAOSD Asbestos Cases (Ramirez v. Avon Products) (2023) 87 Cal.App.5th 939 ("Ramirez").) For example, in Ramirez, a corporate

representative's testimony was inadmissible because the events described took place before the representative began working for the corporation and the representative failed to identify a source for her information. (Id. at p.951.) Even if the representative was "channeling" information from other individuals with personal knowledge, the trial court had no way of evaluating the reliability of the representative's information obtained from these individuals. (Id.) Accordingly, Plaintiffs' objections are sustained.

6-10, 12-16: Same as no.

5. The court notes that for Objection No. 5, Plaintiffs' incorrectly relayed Paragraph 6 of Mr. Foley's declaration, restating Paragraph 5 rather than: "SMO promotes the sales of the limited Suzuki products it distributes." The court finds this to be a Scrivener's error and rules on the actual language of Paragraph 6.

III.

Discussion

A.

Legal Standard

A

defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581, subd. (h).)¿

"A

court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) "The Due Process Clause protects an individual's liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful 'contacts, ties, or relations.'" (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471 – 472.) A state court may not exercise personal jurisdiction over a party under circumstances that would offend "traditional notions of fair play and substantial justice." (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)¿

Code of

Civil Procedure section 413.10, subdivision (c) states "[e]xcept as otherwise provided by statute, a summons shall be served on a person: . . . Outside the United States, as provided in this chapter or as directed by the court in which the action is pending, or, if the court before or after service finds that the service is reasonably calculated to give actual notice, as prescribed by the law of the place where the person is served or as directed by the foreign authority in response to a letter rogatory. These rules are subject to the provisions of the Convention on the "Service Abroad of Judicial and Extrajudicial Documents" in Civil or Commercial Matters (Hague Service Convention)."

When the

party to be served is a citizen of a signatory to the Hague Service Convention, "service through the Hague Service Convention provides the exclusive means of service," subjected to limited exceptions. (Kott v. Superior Court (1996) 45 Cal.App.4th 1126, 1135; see Code Civ. Proc., § 413.10, subd. (c).) "Failure to comply with the Convention renders the service void, even if the defendant has actual notice of the lawsuit." (Floveyor Internat., Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 794.) Japan is a signatory to the Hague Service Convention. (U.S. Dept. of State, Japan Judicial Assistance Information.)

The Hague

Service Convention does not apply "where the address of the person to be served with the document is not known (Convention Done at the Hague November 15, 1965 (Feb. 10, 1969) T.I.A.S. No. 6638, art. 1) or when a foreign corporation is qualified to do business in California and designated an agent upon whom process directed to the corporation may be served in California (Corp. Code, § 2105, subd. (a)). The Hauge Service Convention also does not apply when service on a domestic agent is valid and complete under both state law and the Due Process Clause. (Volkswagenwerk Aktiengesellschaft v. Schlunk (1988) 486 U.S. 694, 707-708 (Volkswagen).) Service on a California representative or subsidiary of a foreign parent corporation is valid as to the foreign parent corporation under California law. (Yamaha Motor Co., Ltd. v. Superior Court (2009) 174 Cal.App.4th 264, 267 (Yamaha).)

B.

Service on a Foreign Corporation

SMC moves to quash

service of summons on the grounds that SMC is a Japanese corporation that is not qualified to do business in California and service was not made in compliance with California law or the Hague Service Convention. (See Code Civ. Proc., § 416.10; Corp. Code, § 2110.)

Plaintiffs

argue that pursuant to Volkswagen, the Supremacy Clause does not require service under the Hague Service Convention if service on the American domestic subsidiary of a foreign corporation is valid under state law. (Volkswagen, supra, 486 U.S. at 707-708; Opp., at pp. 3-5.) Plaintiffs further argue that California law allows service on foreign corporation by serving a domestic subsidiary as a “general manager,” rendering their substitute service to SMO and SMAI valid. (Opp., at p. 5.) Plaintiffs rely on Cosper v. Smith & Wesson Arms Co. (1959) 53 Cal. 2d 77 and Yamaha. (Yamaha, supra, 174 Cal.App.4th 264.)

In Cosper, the

California Supreme Court established a two-part test for validity under the “general manager” provision of Corporations Code section 6500: (1) “whether the foreign corporation is ‘doing business in this state’ within the meaning of the statute;” and (2) “whether the person served is within the statutory designation here ‘the general manager in this State’ for [the foreign corporation].” (Cosper, supra, 53 Cal. 2d at 82-83.) As to the second prong, the Court noted that “it has been said that ‘every object of the service is obtained when the agent served is of sufficient character and rank to make it reasonably certain that the defendant will be apprised of the service made,’ and by service on such an agent, ‘the requirement of the statute is answered.’ [citation omitted].” (Id., at 83.) The Court held that Lookabaugh “in his selling and advertising activities was performing services for Smith & Wesson and providing it with the opportunity for ‘regular contact with customers and a channel for continuous flow of business into the state’” and the arrangement that gave Defendant “substantially the business advantage that it would have enjoyed ‘if it conducted its business through its own offices or paid agents’” was “sufficient to constitute Lookabaugh ‘the general manager in this State’ for purposes of service of process.” (Id., at 84.) The Court did note, however, that whether a person qualifies as a “general manager” turns to the “particular facts involved.” (Id., at 83.)

In Yamaha, relying on Cosper, the Court held that service on Yamaha-America, which had “an exclusive arrangement to sell the manufacturer’s products, provide[] warranty service, English owner manuals, [did] testing, marketing, and receive[d] complaints about the manufacturer’s products”, was sufficient to equate service on Yamaha-Japan. (Yamaha, supra, 174 Cal. App. 4th at 274 [emphasis in original].) The Court found that the relationship in Cosper was “far less intimate, far less connected, and far less interrelated than the relationship between Yamaha-America and Yamaha-Japan,” and if “in Cosper, a sporting-goods-oriented non-exclusive purveyor of Smith and Wesson guns on the West Coast was a ‘general manager in this State’ under Corporations Code section 6500, how much more so is Yamaha–America the ‘general manager in this State’ here, where (unlike Cosper ), Yamaha–America is the American face of the Japanese company.” (Ibid. [emphasis in original].)

Plaintiffs do not sufficiently establish that SMO and SMAI are “general managers” in California for SMC. SMC is a Japanese corporation that is organized and existing under the laws of Japan. (Mot., at p. 2; Takayama Decl., ¶ 4.) SMO is a wholly-owned subsidiary of SMAI, which is a wholly-owned subsidiary of SMC. (Mot., at p. 2.) In Cosper, the Court specifically noted that whether a person qualifies as a “general manager” turns to the “particular facts involved.” (Casper, supra, 53 Cal. 2d at 83.) Here, Plaintiffs provided conclusory allegations rather than facts establishing that SMO and SMAI are “general managers” of SMC. Plaintiffs’ reliance on Yamaha is not persuasive: in Yamaha, the Court found Yamaha-America served as the face of Yamaha-Japan because Yamaha-America undisputably was (1) “the wholly owned domestic subsidiary in the United States;” (2) its “principal business [was] to act as the exclusive importer and distributor of Yamaha vehicles, including the Rhino in this case, manufactured by Yamaha-Japan;” (3) it “provide[d] the warranty and owner manuals for Yamaha vehicles; (4) it “conduct[ed] testing, including suitability testing, for Yamaha vehicles and receive[d] all customer complaints and accident reports for the United States involving Yamaha vehicles; and (5) “Yamaha-Japan’s 2007 annual report describes Yamaha-America as Yamaha-Japan’s ‘Regional Headquarters for North America.’” (Yamaha, supra, 174 Cal. App. 4th at 268.)

Plaintiffs do not allege similar facts here, and instead conclusively state that SMO and SMAI “squarely fit

within the definition of SMC's general manager in California under all relevant precedent" without evidentiary support. (Opp., at p. 9.) Plaintiffs point to the Global Suzuki website, where United States customers are directed to Suzuki Motor, USA, LLC's website. (Opp., at p. 3.) However, this connection does not allow the court to determine that jurisdiction and service are appropriate.

In sum, Plaintiffs have not shown that an exception to the Hague Service Convention applies and that its substituted service on SMO and SMAI was permitted. Plaintiffs have therefore failed to meet their burden of proving the existence of jurisdiction with facts showing effective service.

C.

#### Jurisdictional Discovery

A

plaintiff attempting to assert jurisdiction over a nonresident defendant is entitled to an opportunity to conduct discovery of the jurisdictional facts necessary to sustain its burden of proof[.]” (Hardell v. Vanzyl (2024) 102 Cal.App.5th 960, 975-976; Goehring v. Superior Court (Bernier) (1998) 62 Cal.App.4th 894.) The court has “discretion to continue the hearing on a motion to quash service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on jurisdictional issues.” (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1173.) However, “[i]n order to prevail on a motion for a continuance for jurisdictional discovery, the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction.” (In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127.)

Plaintiffs alternatively

request that the court continue this matter to allow them to conduct jurisdictional discovery. Plaintiffs argue that “based on the evidence uncovered thus far, Plaintiffs have no doubt that jurisdictional discovery will lead to additional evidence demonstrating that Suzuki America and Suzuki USA, are, in fact, SMC's general manager under all relevant case law.” (Opp., at p. 11; Gold Decl., ¶ 9.)

Plaintiffs seek the opportunity to depose SMC's PMQ, Mr. Takayama, and Mr. Foley, and to propound written discovery to prove that SMC sold Suzuki brand motorcycles and replacement brakes, clutches, and engine gaskets in California.

(Ibid.)

SMC argues that Plaintiffs failed to provide support for their request and seek redundant discovery that will not lead to unearthing of new facts or evidence. (Reply at p. 5 [“In fact, Plaintiffs are requesting a continuance in order to depose the two Declarants – individuals that Plaintiffs state lack the foundation to testify as to their respective companies – presumably to ask them the same questions to which they have already supplied answers in their supporting Declarations – under penalty of perjury. It defies logic that the same answers under oath at a deposition will somehow now support Plaintiffs’ position rather than contradict it as they do.”].)

The court exercises its discretion to allow Plaintiff to conduct jurisdictional discovery because some of the proposed discovery, such as whether SMO and SMAI are “general managers” for SMC and/or whether SMC sold Suzuki brand motorcycles and replacement brakes, clutches, and engine gaskets in California, could lead to evidence establishing valid service over SMC.

Accordingly, the request for jurisdictional discovery is granted.

IV.

Conclusion

The court finds Plaintiffs have not shown that an exception to the Hague Service Convention applies and that its substituted service on SMO and SMAI was permitted. Plaintiffs have therefore failed on this record to meet their burden of proving the existence of jurisdiction with facts showing effective service. However, the court exercises its discretion to allow Plaintiffs to conduct jurisdictional discovery. Therefore, SMC’s motion to quash is continued. At the hearing on the motion, upon receiving input from counsel, the court will set the date and briefing schedule for the continued hearing.

Plaintiffs are ordered to give notice.

[1] SMAI and SMO were dismissed without

prejudice in March 2026 after Plaintiff's counsel received an email indicating that "due to the timing of the formation of these Suzuki entities, they were not properly in the case." (Gold Decl., ¶ 4.)